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**Tentative Ruling**

Re: **Doe 7156 v. Fazil**  
Superior Court Case No. 25CECG05155

Hearing Date: August 18, 2026 (Dept. 501)

Motion: 1) By Defendants Pacific Clinics fka EMQ Families First and Michael Popplewell to Strike Portions of the Complaint  
2) By Defendant Rohina Fazil to Strike Portions of the Complaint

**Tentative Ruling:**

To grant each motion and strike the last sentence of paragraph 29, the entirety of paragraphs 47, 59, and 81, and the sixth prayer for relief as to defendants Pacific Clinics and Rohina Fazil. (Code Civ. Proc., §§ 436, 425.13; Civ. Code, § 3294.) To deny as moot as to defendant Michael Popplewell. Defendants Pacific Clinics and Rohina Fazil shall file their answers to the complaint within 10 days of service of the order by the clerk.

The striking of the punitive damages allegations is without prejudice to Plaintiff filing a motion under Code of Civil Procedure section 425.13, subdivision (a).

**Explanation:**

Defendants Pacific Clinics, formerly known as EMQ Families, ("Pacific"), Michael Popplewell ("Popplewell"), and Rohina Fazil ("Fazil") move to strike portions of the complaint that refer to punitive damages for failure of plaintiff John Doe 7156 ("Plaintiff") to comply with Code of Civil Procedure section 425.13.<sup>2</sup>

Code of Civil Procedure section 423.13, subdivision (a), states:

In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed. The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code. The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such

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<sup>2</sup> On May 7, 2026, Plaintiff dismissed Popplewell. The motion is denied as moot as to Popplewell. On February 27, 2026, Fazil separately sought to strike portions of the complaint. The court notes that Fazil then sought in duplicate to join the motion to strike filed by Pacific. The court proceeds on the unified theories.

an order is not filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for trial, whichever is earlier.

The court in *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 187, has stated, "'The phrase 'arising out of' is equated with origination, growth or flow from the event.' [Citations.]" Further, "[t]he allegations that identify the nature and cause of a plaintiff's injury must be examined to determine whether each is directly related to the manner in which professional services were provided." (*Id.* at 192.) Additionally,

[Code of Civil Procedure section 425.13, subdivision (a),] applies regardless of whether the complaint purports to state a single cause of action for an intentional tort or also states a cause of action for professional negligence. The clear intent of the Legislature is that any claim for punitive damages in an action against a health care provider be subject to the statute if the injury that is the basis for the claim was caused by conduct that was directly related to the rendition of professional services. (*Ibid.*)

#### *Defendant Rohina Fazil*

Fazil was a licensed social worker during the time of the allegations in the complaint.<sup>3</sup> The allegations against Fazil in the complaint all arise from the actions taken by Fazil towards Plaintiff during the patient-therapist treatment. Therefore, Code of Civil Procedure section 425.13 applies and Plaintiff was required to request an order from the court to claim punitive damages against Fazil. Accordingly, the motion to strike the last sentence of paragraph 29, the entirety of paragraphs 47 and 59, and the sixth prayer for relief with reference to Fazil is granted.

#### *Defendant Pacific Clinics*

Pacific is a health care clinic that falls under the potential protections of Code of Civil Procedure section 425.13. (*Palmer v. Superior Court* (2002) 103 Cal.App.4th 953, 966.) For paragraphs 47 and 59, the counts of intentional infliction of emotional distress and sexual harassment respectively, the conduct alleged directly arises out of the Fazil's conduct during the patient-therapist treatment. Thus, Code of Civil Procedure section 425.13 applies and Plaintiff was required to request an order from the court to claim punitive damages.

With regards to paragraph 81 and the count of negligence per se, Plaintiff argues the claim is based on a failure to report under the Child Abuse and Neglect Reporting Act ("CANRA") and thus, not subject to the requirements of Code of Civil Procedure section 425.13. However, what Pacific failed to report, according to the complaint, is the abuse that occurred and arose out of the actions taken by Fazil that started during the patient-therapist relationship. In other words, the basis of the claim is still professional negligence. All of the counts of the complaint flow from that event. Thus, Code of Civil

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<sup>3</sup> The Request for Judicial Notice of the California Board of Behavior Sciences Licensing Details for Rohina Fazil, Exhibit A of the moving papers, is granted.

Procedure section 425.13 still applies and Plaintiff was required to request an order from the court to claim punitive damages. Accordingly, the motion to strike the last sentence of paragraph 29, the entirety of paragraphs 47, 59, and 81, and the sixth prayer for relief is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

**Issued By:** KCK **on** 08/17/26  
(Judge's initials) (Date)